



JAMAICA CONSTABULARY FORCE
Kidnap Detection and Investigation Manual

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JAMAICA CONSTABULARY FORCE

Manual on the Detection and Investigation of Kidnap Cases

JCF KIDNAP MANUAL – FOREWORD

This manual serves to enhance the ability of the Jamaica Constabulary Force to deal with cases of kidnapping and should be used as ‘A Guide to the Detection and Investigation of Kidnap Cases in Jamaica’.

The primary objective of the police when investigating incidents of kidnap and other serious crimes remain the same, that is, the preservation of the life of the hostage and his/her prompt and safe return.

The manual’s organizational structure of Red, Green and Blue Commands is similar to the standard command structure framework that is adopted throughout other police jurisdictions.

By their nature, kidnaps are ‘**crimes in action**’ where lives are at risk and must be treated very seriously with coordinated and immediate response. They may demand an investigative approach that may be unusual to many experienced investigators, which may call for scenes to be left unattended, evidence unretrieved and witnesses un interviewed. This absence of overt activity in the initial stage of the investigation may be necessary, to preserve the covert nature of an operation and to protect the life of a hostage.

Many investigators and crime officers may have difficulty in accepting the necessity of taking the risk of losing a substantial sum of money without any effective guarantee for the safe return of the hostage. Each kidnap investigation is unique and requires the senior investigating officer to be creative and flexible in his/her approach.

Proper contingency plans are to be in place based upon this manual. These plans are to be regularly rehearsed to ensure effective response when required.

It is therefore critical that our crime officers who will be appointed as Senior Investigating Officer’s familiarize themselves with the contents of this manual, and the capabilities of their own investigating officers and support systems.

As Commissioner of Police, I will ensure that we have the systems and support mechanisms in place to enable us to meet our primary objective, the preservation of the life of the hostage and his/her prompt and safe return.



Rear Admiral Hardley Lewin
Commissioner of Police

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1. INTRODUCTION

1.1 Objectives and Purpose

PRIMARY OBJECTIVES

The primary objectives are:

- Preservation of life of the Hostage.
- Prompt and safe return of the Hostage.
- The protection of the Victim and/or Courier during the operation.
- Public Safety.

ARREST OF OFFENDERS

The arrest of offenders, the securing of evidence and recovery of ransom are secondary and subordinate to the primary objectives.

OVERVIEW

This manual of guidance provides basic principles, working practices and procedures to police officers investigating Kidnap and Extortion offences, hereafter referred to as ‘Crimes in Action’.

This manual is not a definitive document and does not cover every eventuality. The content is based on agreed existing best practice and operational experience.

The very nature of these offences tends to present unique policing problems that can only be solved by unprecedented solutions. Any deviation from this manual’s guidance should be thought through very carefully and justified in the Senior Investigating Officer’s (SIO) policy.

The ongoing need to preserve public safety or prevent loss of life provides a critical influencing factor in dictating policy, strategy and tactics. For many it will be an ultimate test of their investigative skill and professional ability. A comprehensive understanding of the contents of this manual will assist in rising to that formidable challenge.

All reports must be quickly assessed and is found to be a “**crime in action**” immediate contact with the senior on call officer from the Organized Crime Investigation Division who will appoint the Senior Investigating Officer (SIO). This will usually be a Gazetted Officer and the Controller, will usually be a Sub-Officer, both of which are likely to be from OCID. Commanders (Red/Green/Blue) will be allocated according to the location of the activity and in most cases will be from HQ or Area resources.

CAUTIONARY NOTE

Any responses that conflict with the recommendations contained in this Manual could result in loss of life and subsequent criticism of police action.

1.2 Terms Used

GLOSSARY OF TERMS

An appreciation of the terms used in relation to kidnapping is vital. Set out below are nationally agreed definitions.

Term	Meaning
Hostage	An individual who has been kidnapped.
Victim	The person/company/organisation to whom the unwarranted demand or threat is directed or intended, or is expected by the offenders to respond.
Offender(s)	A culprit where there is sufficient evidence to link to an offence.
Suspect(s)	A person believed guilty of the offence but without proof.
Victim Communicator	The individual communicating on behalf of the Victim directly with the people making the threat(s), demand(s), or issuing instructions.
Courier	The person(s) delivering the ransom or other negotiable item, which is, or purports to be, that being demanded by the offenders.
Complainant	The first person notifying police of the offence.
Crisis Management Team	In a corporate incident a team to co-ordinate the company's response to the crisis and provide liaison with the police investigation.
Counter-Surveillance	Any method either physical or technical employed by the Offender(s) to detect police involvement or the use of surveillance.
Inside Agent	A person who is in any advantageous position (e.g. employed by the Victim or Victim organisation) which allows them to gather intelligence or carry out counter surveillance on behalf of the Offender(s).
Stronghold	The location where the Hostage is being held.
Proof of life	Positive proof that the Hostage is alive. Obtained from a reliable or verified source.
CRIMES IN ACTION	'Crimes in Action' are offences actually occurring while the investigation is being conducted. Specifically arise in such cases as: • kidnap • extortion 'Crimes in Action' Characteristics 'Crimes in Action' have characteristics that often: • Demand rapid decision-making, initially on the basis of very limited information. • involve an escalating flow of events thereafter resulting in: i) information overload, ii) constant threat to life present throughout.

CORRECT USE OF TERMS

To prevent misunderstandings it is vital that both in training and during an investigation all personnel use these terms correctly. **The common and most dangerous mistake is to confuse the term Hostage with Victim, especially during stressful moments. This could have life threatening consequences.**

Note: In many cases, the Complainant, Victim, Victim Communicator and Courier will be the same person.

2. DEFINITION OF INCIDENTS

2.1 KIDNAP

2.1.1 Nature of Kidnap

COMMON LAW DEFINITIONS

The common law definitions of terms used in relation to kidnapping are set out in this table:

Term	Definition
Kidnap	The taking of a person without lawful excuse by force or fraud without the consent of the person being taken or so carried away.
False Imprisonment	Comprises of unlawful detention, compulsion and restraint of personal liberty.

OFFENCES AGAINST THE PERSON ACT DEFINITIONS

Offences Against the Person Act. Sec.70. (1) (a) (b) (c).

By virtue of Sec. 70, the kidnapper must have the INTENT to hold his victim against his will for ransom, whether by way of money, or valuables or any promise to do or refrain from doing anything or any other consideration, or

(b) cause him to be unlawfully sent or transported out of Jamaica against his will, or;

(c) to hold him for service against his will.

According to Sec.70 (4) of the Offences Against the Person Act.

A person “kidnaps” when he unlawfully, either by force or fraud, leads or takes away, decoys, or entices away, or detains or secretes away other person.

However, the fact that a person in relation to whom the offence is alleged to have been committed did not resist is not a defence, unless the accord proves that the failure to resist was not caused by fraud, threats, duress, force or exhibition of force.

LIMITATIONS OF THIS MANUAL

While the above definitions would include kidnapping, including those not specifically referred to in this manual:

- unlawful imprisonment,
- siege situations and
- abduction of children for immoral purposes.

Note: This manual focuses on Kidnap and extortion where there is a subsequent demand, and is referred to as ‘Crimes in Action’ [1.2].

TYPES OF KIDNAP

Kidnaps may be committed for various reasons and involves different *modus operandi*. For the purpose of this manual kidnap has been sub-divided into 2 main types:

1. Conventional Kidnap;

2. Tiger Kidnap/Situation.

These have been identified because the circumstances that are peculiar to each case, requires a slightly different but nonetheless significant, initial police response.

DEFINING KIDNAP

Conventional and Tiger Kidnap/Situation are defined as:

Term	Definition
Conventional Kidnap	The abduction or holding of a Hostage with the intention of extorting money or other valuables, or securing some substantial concession, for the Hostages safe return.
Tiger Kidnap/Situation	The abduction or holding of a Hostage (or claim of having done so) with the intention of forcing an employee, relative or another to facilitate the immediate theft of any valuables or concede some other form of ransom from any institution or business organisation. SEE APPENDIX "A"

2.2 CONVENTIONAL KIDNAP

Conventional Kidnap is sub-divided into 5 further categories which are:

- 1) Stranger Kidnap
- 2) Criminal Vendetta
- 3) Human Trafficking
- 4) Political Kidnap
- 5) Domestic Kidnap

2.2.1 *Stranger Kidnap*

Potential Targets

The kidnapper will normally target the child, relative or partner of a wealthy individual and abduct them for ransom. Alternatively, they may choose to take a person who is part of a wealthy organisation.

Historically these cases are rare but when they occur they invariably attract massive media attention and become somewhat notorious, especially those with tragic consequences.

2.2.2 *Criminal Vendetta*

Overview

Criminal Vendetta cases can present special difficulties because the Victim and/or Hostage(s) are often reluctant to support a judicial prosecution. However, considerable law enforcement resources are sometimes used to liberate the Hostage(s), or establish whether they have escaped or been released.

Criminal Target

A kidnap victim may be subject of a criminal vendetta in varying circumstances, for example:

- a 'territory war'
- simply to demonstrate 'superiority' or 'muscle' or
- involvement in a dispute over a joint criminal venture, i.e. drugs deal.

Motives and Menaces

Motives and menaces may vary in complexity and degree.

Violence

Violence is often experienced by the Hostage but to differing degrees.

Illegal Lifestyle

A Victim's or Hostage's illegal lifestyle may contribute to the circumstances of their involvement.

Obstruction to Enquiries

In cases involving criminals as Victims or Hostages, the full co-operation of family and friends cannot be assured. They may:

- hamper an investigation,
- attempt to act unilaterally,
- know the identity of the kidnappers but refuse, or be reluctant, to divulge it to police.

2.2.3 Human Trafficking

Targets

The types of targets subject of illicit trafficking in human cargo are e.g.

- economic migrants,
- illegal immigrants,
- Asylum seekers etc.

Vulnerability

Hostages are vulnerable to human trafficking because:

- They are almost always stateless persons having had all proof of their country of origin deliberately destroyed.
- They lack financial support and/or inability to speak in anything other than their native language, make them vulnerable and deter them from considering escape.

International Protocols

Human trafficking cases often involve an international dimension and proper protocols must be observed.

M.O.

Hostages are either:

- detained whilst en route, **or**
- Kidnapped after they have been delivered to their final destination.

Characteristics

In some cases the criminal organiser(s) decide to separate and imprison some of the individuals they are transporting to:

- extort more money from them or their families,
- gain the full amount outstanding.

Violence Against Hostages

The level of violence used against Hostages is often vicious and the criminals who carry out these offences are callous, well organised, resourceful and efficient.

Ransom Demands

A ransom demand is normally demanded of the Hostage(s) family in the country of origin. Attempts to deliver the ransom anywhere other than in country, may be resisted, sometimes with detrimental consequences to the Hostage.

Surveillance Aware

The conduct of the criminals often includes very professional counter-surveillance tactics.

2.2.4 Political Kidnap

Target

Political kidnaps will possibly target a public figure.

Motive

Political kidnap's involves special problems:

- the motive may be to secure the release of a political prisoner or
- to gain the attention of the media for a 'cause'.

Ransom

In political cases there may never be a conventional demand for the payment of ransom. The liberty of the Hostage may be offered in return for some concessions, which is beyond the political will of the government to provide.

2.2.5 Domestic Kidnap**Target**

These are normally cases where:

- divorce or separation proceedings takes a child,
- elopement by the child themselves is made to avoid an enforced marriage.

Although outside the scope of this manual, domestic kidnaps, sometimes bear all the hallmarks of a 'stranger kidnap' [2.2.1].

Motive

Any demands, if made, can often be deliberately false or camouflage's the real motive for the kidnapping or disappearance.

Ransom

Any ransom demand is unlikely to be genuine, but there may be a request to make some substantial concession.

Defining Domestic Kidnap

Because of the aforementioned similarity, investigators should deal with such cases as 'worse case scenario' until the domestic involvement is established beyond doubt.

2.3 TIGER / KIDNAP SITUATION

Tiger Kidnap/Situations (often referred to as just ‘Tigers’) are so titled to prompt a decisive initial police reaction, even in cases where it is suspected that a Hostage has not actually been taken.

TARGETS

Targets usually include the relative or partner of an employee, custodian, or person in position of trust (e.g. manager, security guard etc). They are required to assist in the theft of valuables, extort money or otherwise forced to meet the demands of the kidnappers.

There have been cases where a Hostage has not actually been taken but, it is still a vital requirement that police proceed in the belief that the Hostage’s life is at risk until proven otherwise.

NB: SEE APPENDIX “A”

TARGET ORGANISATIONS

Offences are perpetrated against institutions or business organisations such as:

- banks
- security companies
- cash in transit organisations
- cash centres
- post offices
- building societies
- jewellers
- supermarkets
- blue chip companies.

2.4 Extortion

2.4.1 Nature of Extortion

DEFINITION

Under Common Law is defined as follows:

Term	Definition
Extortion	the crime of obtaining something such as money or information from somebody by using force, threats, or other unacceptable methods

TARGET

The victim can range from one individual to a large commercial company or government organisation, including in some cases the Police Service itself.

NATURE OF DEMAND

The nature of extortion can vary considerably. It can involve:

- a demand for money not to expose some immoral/illegal activity,
- a threat to carry out industrial espionage,
- a threat to cause massive damage or danger to public safety,
- sending or deploying explosive or incendiary devices.

THREAT ASSESSMENT

The ability to carry out the threat is not always a reality but often its convincing nature demands a detailed threat and/or risk assessment to be conducted before determining the appropriate police action.

42A. - Act to Amend the Larceny Act

The principal Act is amended by inserting next after section 42, the following as section 42A-

- I. Every person who-
 - a. with a view to gain for himself or another or
 - b. with intent to cause loss to another, makes any unwarranted demand with menaces, shall be guilty of the offence of extortion.
- II. For the purpose of this section-
 - a. A demand with menaces is unwarranted unless the
 - a. (i) person making the demand, satisfies the Court that-
he has reasonable grounds for making the demand,
 - b. (ii) the use of the menaces is a proper means of
reinforcing the demand;
 - b. "Gain" and "loss" mean a gain or loss, respectively,
 - a. in money or other property, including an office or

- b. employment, whether or not for remuneration,
 - c. whether temporary or permanent and, for the
- c. purpose of this definition-
- d. “gain” includes a gain by keeping what one has and a gain by getting what one has not and
 - e. “loss” includes, a loss by not getting what one might get and a loss by parting with what one has;
 - f. The nature of the act or omission demanded is immaterial and it is also immaterial whether or not the menaces relate to action to be taken by the person making the demand.
 - g. ***Note – this manual of guidance does not cover Extortion although it is necessary to understand this legal definition as elements of such will be apparent in any kidnap investigation. A separate Extortion Strategy will be published by OCID and all investigations must be conducted in accordance with the overall aim to preserve life and to ensure police activity is thoroughly risk assessed and documented.***

2.5 COMMERCIAL EXTORTION

2.5.1 *Nature of Extortion*

There is no legal definition of Commercial Extortion. Offences charged under this classification are likely to include Extortion and the various offences connected with the use of explosives.

TYPE OF THREAT

The nature of this offence can vary considerably. Offender(s) may threaten to assault staff and/or customers or damage property by:

- bombing
- arson
- poisoning food products
- computer virus
- communication sabotage (cyber-extortion)
- exposing:
 - a) A perceived corrupt or unethical business practice or
 - b) Immoral behaviour by an employee.

CHARACTERISTICS

Corporate related extortions bring with them particular characteristics.

The Offender(s) may:

- choose the venue, timing and method of attack,
- select the method of communication,
- select the point of contact,
- specify who they want to negotiate/communicate with,
- have a better opportunity of conducting counter surveillance especially if they are part of the victim organisation.

NATURE OF DEMAND

The nature of the demand can differ considerably from that of just payment of money. It may involve:

- the cessation of a politically controversial business practice or relationship
- the removal of an industrial practice (redundancy notices etc), or
- A combination of all of these, plus others.

Such demands may be difficult to tolerate or approve and thereby make the negotiation process problematic.

3. INITIAL REPORT OF INCIDENT

3.1 RECEIPT OF REPORT

3.1.1. Method of Receipt

‘119’ METHOD

Any initial complaint is likely to be received via 119 into Police Control.

POINT OF CONTACT

Switchboards, front office and other public contact points can potentially receive such a complaint.

CRITICAL ACTION

People working in these areas must be aware of the critical action to be taken and, more importantly, not to be taken, in these circumstances. Crucially they must recognize the need to contact a senior detective without delay and undertake the advice contained in this manual without delay.

TRAINING COMMITMENT

Senior Officers must ensure that all staff is properly trained to deal with initial reports of kidnap offences.

METHODS OTHER THAN ‘119’

If contact is made with the police via a method other than ‘119’:

- Police Control will still be notified without delay (*unless instructed otherwise*)
- An ‘incident record’ created to enable them to manage the resources
- The incident should be designated ‘restricted’ and access limited.

DIRECT CONTACT

There may be some situations where contact is made directly to OCID and it is a matter for the SIO to decide if the incident should or (should not) be passed through Police Control.

3.2 ACTION ON RECEIPT OF INITIAL REPORT

3.2.1 Key Actions on Receipt of Complaint

ACTION NOT TO BE TAKEN

Under no circumstances must the call taker:

- **Send a patrol to the scene.**
- **Transmit any details over Force radios.**
- **Call the Complainant back if contact is lost without authority of the Senior Investigating Officer attached to Organised Crime Investigation Division.**

Note: There may be some instances where the kidnapping takes place in public view, e.g. outside a school. In such cases the absence of a visible police response could give rise to serious public criticism or may even alert the Offender(s) to a police investigation by non-police involvement.

ACTION TO BE TAKEN

The following table details what initial action should be taken on receipt of a call reporting any kidnapping offence.

Step	Action
1	Establish details of incident (including brief description of Hostage).
2	Inform Police Control Duty Officer/Supervisor.
3	Reassure Complainant and deal sympathetically.
4	Agree on a mutual codeword for future police contact with Complainant. Important: Ensure that the complainant understands they are not to use the code word themselves but that the police will use it in every subsequent communication with them as an introductory statement. Genuine police contact will always contain this codeword. If the codeword is not immediately given, the Victim must treat the call as suspicious. In the circumstances the Complainant should maintain confidentiality and not allude to police involvement.
5	Tell the Complainant the investigation is now a priority and will be dealt with covertly, using plain clothes officers.
6	Tell Complainant a Senior Detective will re-contact them, using the code word as soon as possible.
7	Give the Complainant a dedicated telephone number on which they can make further contact with police.
8	Instruct the Complainant to dial *69 in an effort to trace the Offender's last call or subsequent calls.
9	Create Message Log (Restricted Access).
10	Refer to the Force Contingency Plan.

LOCATION OF INCIDENT INVESTIGATION & COMMAND ROOM

The Organized Crime Investigation Division (OCID) will manage all reported or suspected incidents.

PERSON RECEIVING REPORT

Police Control Rooms should have formatted prompts to guide responses to specified types of incident such as Tiger Kidnap/Situations and other Hostage or duress type situations. These prompts serve as a reminder to the call taker for what action they should take and should not take.

REQUIRED RESPONSE

Speed of response is vital. Police response must be:

- *Secret*
- *Speedy*

Any visible signs of police activity may have disastrous consequences.

POLICE CONTROL DUTY OFFICER/SUPERVISOR

The following action must be taken by the Police Control Supervisor:

- make an immediate assessment as to whether;
 - i) The absence of an overt police response would be inconsistent with normal police action.
 - ii) What police response is appropriate to ensure public safety (e.g. kidnapping incident in public view possibly with the involvement of firearms),
- Immediately contact Senior OCID Officer on call (Thro Police Control in Kingston),
- Inform ACP Serious & Organized Crime Branch,
- Inform DCP Crime Portfolio,
- Consider options for covert rendezvous (RV) points for initial resources.

TAKE NO OTHER ACTION

No other action is to be taken without further reference to the Senior OCID Officer on call or his/her deputy.

4. INITIAL INCIDENT DECISIONS

4.1 Categorising report

The SIO will be required to assess the available facts without delay, seeking additional information to fill in any information gaps and to categorise the type of incident and police response required, to achieve the primary objectives.

4.2 Initial Actions for Senior Investigating Officer (SIO)

SENIOR INVESTIGATING OFFICER

The SIO in overall command of the investigation will normally be at least the rank of Deputy Superintendent of Police attached to OCID.

PRIMACY OF INVESTIGATION

The SIO will direct, lead and co-ordinate all the activities undertaken utilising Divisional Area resources and any other specialist services that may be available.

BRIEFINGS

It will be the responsibility of the SIO to personally brief the ACP Serious & Organized Crime Branch and/or other Chief Officers.

FUNCTION OF SENIOR INVESTIGATING OFFICER (SIO)

The function of the SIO is:

- to manage the investigation;
- determine policy and strategy in line with the best advice, and information available and
- complete a policy book or decision log where appropriate.

ARREST DECISION

The decision to arrest will be that of the SIO. There may, however, be some rare cases where that responsibility will need to be devolved to the person best positioned to make that decision (e.g. if the Courier or Victim is in immediate danger).

RESPONSIBILITIES OF SENIOR INVESTIGATING OFFICER (SIO)

The following are the key responsibilities/objectives of the SIO are:

- The primary objective is the preservation of the life of the Hostage and his/her prompt and safe return, and the protection of the Victim/Courier during the operation.
- The secondary objective is the arrest of offenders, the securing of evidence and the recovery of ransom.
- To re-establish contact with the complainant, using the identified codeword, and establish the current situation.

POLICY BOOK

The SIO must commence a Policy Book or Decision Log.

POLICY DECISIONS

The SIO is responsible for all the Operational Policy decisions.

REASONS

All decisions must be recorded indicating the options and the rationale for choosing that particular course of action.

NOTIFYING NATIONAL INTELLIGENCE BUREAU/KINGFISH (NIB)

The SIO will contact, without delay the senior officers on call from Special Branch & NIB to ensure that all available information/intelligence is shared and assistance is obtained. Telephone Intelligence and data is essential as the Communication Intelligence Unit at NIB must be utilized.

OTHER CONSIDERATIONS

Other considerations for the SIO at this stage are:

- Briefing requirements,
- Divisional/Area CIB Senior Officer to attend rendezvous (RV) point,
- Support Services for appropriate firearms response and tactical adviser (consider despatch to RV and emphasise covert approach),
- Entity command post,
- Contact Scenes of Crime/Scientific Support,
- Media strategy/media blackout,
- Circulate Hostage as missing person.

OCID COMMAND POST

OCID will open a command post and will ensure effective means of communication are maintained with all aspects for these complex and often time sensitive investigations which can rapidly develop through circumstances that cannot be dictated or controlled.

Key areas of concern relate to

- Where the hostage was taken
- Where demands/negotiations are being conducted
- Where meetings/exchanges are likely to occur and
- Where the hostage is being held

Co-ordination of all activities will be an essential element in the successful conclusion of a kidnap investigation. Responsibility for all activities remains with the SIO and OCID no matter where the activity is undertaken or likely to occur.

DIVISIONAL/AREA SUPPORT

Full co-operation and support of all Divisional/Area staff is essential to achieve the primary objectives, during these fast moving and dynamic investigations and as such, it may not be appropriate or possible for the normal lines of command/communication to be followed. All senior officers must be aware of this limitation and are asked to provide full support to the SIO and OCID to achieve these objectives.

5. *INVESTIGATIVE STRUCTURE*

5.1 AREAS OF COMMAND

5.1.1 *Command Structure*

THE SIO/DEPUTY SIO

The SIO is appointed by a Chief Officer and will normally be at least the rank of a Deputy Superintendent. The responsibilities of the SIO/Deputy SIO are as set out in the previous section of this document.

THE CONTROLLER

The Controller's main function is to assist and advise the SIO in all operational aspects and the implementation of strategy.

RED COMMAND

Red Command will be responsible for managing the 'Red Centre' which is the location or means of communications into which the Offender(s) have made, or may be expected to make contact.

GREEN COMMAND

Green Command is the Operational OCID Control Room and co-ordinates the resources necessary to conduct the operation. They will:

- liaise with NIB/KINGFISH and MIU
- seek authorities and
- Complete a continuous Health and Safety risk assessment.

BLUE COMMAND

Blue Command is responsible for:

- All static, mobile and technical surveillance and
- the protection of the courier whilst not at the Red Centre.

INTELLIGENCE CELL

An intelligence cell is responsible for covertly researching suspects, intelligence sources, and any other line of enquiry that might lead to the identification of the Offender(s).

INVESTIGATION TEAM

The Investigation Team forms part of the investigative response to the incident and operate from a nominated location, most likely an Area or Divisional office (police activity **MUST** be covert, including from other police officers).

POSSIBLE STRATEGY ADVISORY GROUP

The SIO might consider forming a Strategy Advisory Group consisting of some of the specialists that are referred to on the command Structure Flowchart overleaf.

CRISIS/INCIDENT MANAGEMENT TEAM

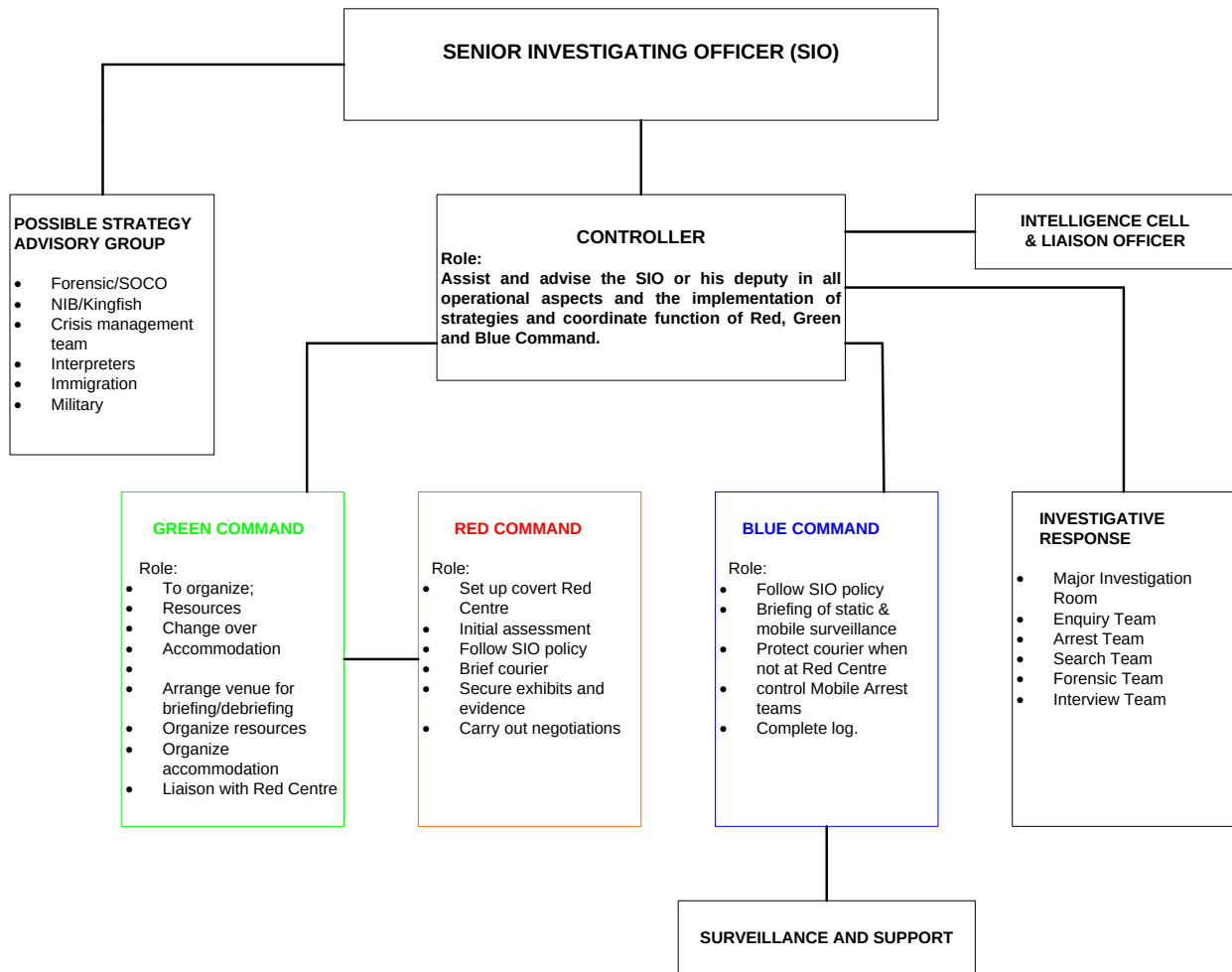
In the case of a corporate incident, organisations will form a Crisis Management Team (hereafter referred to as the CMT) to co-ordinate the company's response to the crisis and assist in their liaison with police.

NON-POLICE SPECIALIST SUPPORT

The SIO, in the context of the covert nature of the enquiry, should be aware of the merits of bringing together specialist advisers in such areas as cultural awareness and profiling.

COMMAND STRUCTURE FLOWCHART

Set out below is a flowchart of the command structure.



5.2 RED COMMAND (RED CENTRE)

5.2.1 Red Commander

RED COMMANDER FUNCTION

The Red Commander (normally Inspector) will:

- supervise the Red Centre
- manage and brief the:
 - i) Victims (or Victim Communicator);
 - ii) Force Negotiators and
 - iii) Couriers
- Assume responsibility for the protection of those people within the Red Centre, including the Courier when on site.

In carrying out that function they must make a dynamic threat or risk assessment and communicate their findings.

RESPONSIBILITY OF RED COMMANDER

The responsibilities of the Red Commander are to:

- make an initial assessment of the incident;
- conduct a risk assessment in respect of the covert entry into the Red Centre and the safety of continued occupation thereafter;
- locate, set up and manage the Red Centre;
- establish an efficient communications and control centre within that location;
- ensure negotiations between the Victim or the Victim Communicator and the offenders are conducted in accordance with the SIO's policy and strategy;
- fully brief the Victim, Victim Communicator and/or the Courier (who may be one and the same) to ensure they carry out their function in the best interests of the investigation;
- arrange for adequate protection for all the occupants (including the Courier whilst on the premises);
- subvert any unilateral action by the Victim which may have a detrimental effect on the police operation or even risk to life;
- secure and preserve any potential exhibits and/or evidence connected with the Red Centre function;
- arrange Technical access to any vehicle that the Victim or Courier may be required to use as part of the investigation;
- regularly update SIO re progress of the enquiry;
- establish Victim/Hostage background.

RED COMMAND TEAM SIZE

The size of the Red Command Team will depend upon the circumstances of the offence, the size of the accommodation available and its accessibility.

PERSONNEL

Red Command Team should include where appropriate:

- Red Commander
- Force Negotiator
- Red Command Assistant
- Technical Support Engineer
- Interpreter
- Family Liaison Officer
- Forensic Science or Scenes of Crime personnel
- Firearms Support.

The reality is that most locations will only be capable of accommodating the Red Commander, Force Negotiator (if the Red Commander is not a trained negotiator) and the Red Command Assistant.

PERSONNEL GENDER CONSIDERATIONS

Consideration should be given to including a person of the same gender as the Victim(s) as a member of the Red Command Team (subject to availability and the wishes of the Victim concerned).

FORCE POLICE NEGOTIATOR

The role of the Force Police Negotiator is to:

- assist the Red Commander in all negotiating matters;
- take on the role of the Red Commander within the Red Centre prior to the arrival of the Red Centre Team, if necessary in the initial stages;
- advise the Victim and/or Victim Communicator on how to best communicate and deal with any offender contact;
- ensure communications between the Victim or Victim Communicator and the offenders are conducted in accordance with the SIO's policy and strategy.

5.2.2 Red Centre

FUNCTION

The function of a Red Centre is to receive and facilitate communication with the Offender(s). It will normally contain the:

- Victim
- Victim Communicator and
- Red Command Team.

INITIAL ASSESSMENT

It is important that the Red Commander be allowed time to covertly enter and properly establish the Centre.

RED CENTRE POSSIBILITIES

Red Centre is any location or communication apparatus, into which the Offender(s) have made or may be expected to make contact. This is often:

- the Victim's home
- business premises
- Police premises.

It could include:

- a mobile telephone being carried by the Victim or Victim Communicator
- a purpose built room;
- another location into which the telephone calls are being deliberately diverted.

LOCATION / RELOCATING

Consideration will need to be given to an alternative location than the Red Centre to ensure both the protection of the Red Centre Team and its function.

The following must be considered:

- It must always be assumed that the perpetrators will be monitoring the location for signs of police activity;
- If the Red Centre is not seen to be acting naturally or capable of reacting to certain demands the Hostage's safety could be compromised, as could the location of the Red Centre itself;
- Before any relocation is employed the SIO must balance the risk between the safety of all those present at the expected Red Centre and the effect on the situation and Hostage.

MULTIPLE LOCATIONS

Hostile incoming contact may be made to a number of locations. Consider the following:

- Where Victim or Victim's Communicator is required to move from the initial Red Centre to another and it is anticipated further hostile contact will be made, this will be known as 'Red Centre Two' and the previous centre as 'Red Centre One', *et al.*

- In such circumstances it may be necessary to insert another Red Command Team into the second centre to run parallel with the first.
- In some cases with multiple Victims there may be a need for more than two Red Centres with a central co-ordination point.
- Ensure all available information is gathered eg. location, phone numbers being used, occupants, visitors etc.

INTERNATIONAL RED CENTRES

Where incoming contact is being made, outside Jamaica, it is essential that assistance be obtained at the earliest opportunity. Contact with the local Law Enforcement Agency should be considered:

- Contacting the local Embassy/Foreign Missions 'Police' Liaison Officers
- Contacting NIB to instigate Interpol, requesting assistance/support

5.2.3 Establishing Red Centre

COVERT ENTRY STRATEGY

Police are obliged to assume and anticipate counter surveillance by the Offender(s). The Red Commander therefore must consider a covert entry strategy. This may entail asking questions about the premises for example:

- Configuration
- Location
- Occupants
- Size
- Environment etc. or may require a detailed reconnaissance to be conducted by surveillance operatives under Blue Command.

Note: It is important that the time taken to prepare for entry does not become so complex or lengthy so as to lose all objectivity and risk the Victim acting unilaterally.

VICTIM CONSULTATION

Consultation with the Victim prior to entry may often provide the solution.

NON INSERTION CASES

It may be impossible to enter the Red Centre within the time allowed by the Offender(s) (e.g. Tiger Kidnap/Situation). It may not be prudent to enter the Red Centre at all, especially if an inside agent is strongly suspected. In non-insertion cases there will still be a need for the Red Commander, or similarly qualified police officer, to co-ordinate and influence events by advising the Victim from outside the Red Centre.

ADVANCED ENTRY PERSONNEL

If the Red Command Team is unable to gain entry within 2 hours or sooner, consideration must be given to sending a plain clothes police officer to make a covert or disguised advanced entry. Dependent on the circumstances, it is open to the SIO to decide who to insert into the Red Centre. This individual can always be extracted once the Red Command Team is inside and set up.

5.2.4 Red Centre Occupants

OCCUPANTS

Most locations will only be capable of accommodating the Red Commander, Force Negotiator (if the Red Commander is not a trained negotiator) and the Red Command Assistant.

OTHER OCCUPANTS

Other occupants may be in the Red Centre at the Victim's invitation (e.g. Attorney's, risk consultants, bodyguards, insurance representatives). If a healthy environment within the Red Centre is to be maintained, these people must not be made to feel unwelcome or isolated from proceedings unless there is some genuine doubt about their integrity, ethics or motives.

UTILISING OCCUPANTS

Red Commanders may need to assess the risk of utilising members of the Victim's staff (e.g. a driver) to carry out covert tasks such as collecting and despatching people, documents and exhibits to and from the Centre.

EXCLUDING OCCUPANTS

The Red Commander in consultation with the SIO must be aware that any decision to exclude occupants has the real potential to make the enquiry overt.

5.2.5 Red Centre Protection

RED CENTRE PROTECTION

The Red Commander must keep the SIO informed of any development that:

- justifies Red Centre receiving additional firearms protection or
- influences the threat or risk assessment in any other way.

FIREARMS PROTECTION

The Red Centre may be vulnerable to attack, particularly if Offender(s) believe a large quantity of money is being kept on the premises. Careful consideration must be given to protecting both the ransom and people in Red Centre. This may require armed protection outside.

DIFFICULTIES PROTECTING RED CENTRE

The very nature of the Red Centre itself may make it difficult to provide armed protection and in such cases the SIO may need to consider other options, or the feasibility of moving Red Centre.

5.3 CONTROLLER (OPERATIONS ROOM)

5.3.1 *Operations Team Controller*

CONTROLLER ROLE

The flow chart identifies the role of the Controller.

RESPONSIBILITY OF CONTROLLER

The responsibilities of the Controller are to:

- advise on the location of Red Centre;
- advise on the feasibility of additional officers;
- advise on the need for protective surveillance to sweep the area to identify counter surveillance;
- co-ordinate the functions of:
 - i) Green Command (Operations Room)
 - ii) Blue Command (Surveillance) and
 - iii) Red Command (Red Centre/Victim/Courier)
- ensure best use is made of all Technical Support Services and the Green Command Unit;
- with the SIO, carefully monitor performance and well being of all officers, especially those within Red Centre;
- ensure the completion of all relevant authorities;
- ensure that continuous risk assessments are completed;
- be fully conversant with Force policies on kidnap and extortion and advise the SIO on such matters;
- ensure that compatible communications are established between his/her three commands and the Investigating Team;
- at the conclusion of the operation, ensure all evidential and intelligence matters are made available to the SIO;
- provide assistance in respect of disclosure and Public Interest Immunity.

5.3.2 *Green Commander*

GREEN COMMANDER FUNCTION / RESPONSIBILITIES

The Green Commander (normally Inspector) is responsible for the Operations/Green Room and completing the Policy log.

5.3.3 *Operations/Green Room*

FUNCTION

The primary function of the Operations/Green Room is to provide a static communications and control centre through which both the SIO and Controller can co-ordinate and monitor the operational aspects of the incident.

ESTABLISHING THE OPERATIONS / GREEN ROOM

Wherever possible, the Operations/Green Room should be located at OCID with direct communication links to the SIO, Investigating officers (Area or Division) to:

- promote effective liaison and
- communication flows.

The need for close working between the SIO, Major Investigation Room (MIR) and the Operations Room (Green Command) cannot be over-emphasised.

ENQUIRIES

Operations/Green Room staffs are not part of the Investigation Team and should:

- only deal with urgent enquiries vital to the surveillance operation,
- fully record such enquiries and actions in the logging system.

5.4 BLUE COMMAND (SURVEILLANCE)

5.4.1 *Blue Commander*

FUNCTION OF BLUE COMMANDER

The Blue Commander's (normally Inspector) main function is to deploy surveillance in a way that compliments the SIO's strategy.

COMMUNICATION THROUGH CONTROLLER

The Blue Commander must, through the Controller, keep the SIO apprised of:

- all relevant intelligence and
- evidential information gained by surveillance.

RESPONSIBILITY OF BLUE COMMANDER

Blue Commander is responsible for:

- assisting in achieving the primary objectives of the SIO;
- all mobile, static and conventional surveillance;
- protection of the Victim/Negotiator/Courier/Victim Communicator whilst not under the control of Red Command;
- ensuring all intelligence gained from surveillance is forwarded to Operations/Green Command;
- advising the Controller on all matters affecting surveillance and technical support
- ensuring surveillance logs are maintained;
- briefing/debriefing operations, ensuring all evidential aspects are correctly dealt with.

CONTAMINATION CASES

In offences of extortion, where there is a threat to contaminate items, the following objectives must also be considered:

- protect members of the public from contaminated items
- prevent contamination of products.

5.4.2 *Blue Command Location*

MOBILE COMMAND VEHICLE

To provide Blue Commander with maximum flexibility, a Mobile Command Vehicle must be readily available.

5.5 MAJOR INCIDENT ROOM (MIR)

5.5.1 *MIR*

LOCATION

The Major Incident Room (MIR) will be established at a suitable location; usually at an Area or Divisional station (purpose & activity must remain covert).

FUNCTION

The MIR will deal with the:

- administration of the investigation and
- management of intelligence.

Many of these functions may need to be carried out covertly and discretely and in some cases delayed due to the requirement to keep the operation covert.

MIR LIAISON OFFICER

It is recommended that a Liaison Officer of Detective Inspector rank be appointed from the Investigative Team to act as liaison between Green Command and the MIR.

The Liaison Officer must ensure that:

- copies of immediate actions raised in Green Command are passed to the MIR for necessary action;
- any matter which may affect Blue Command (Surveillance) is brought to the attention of Green Commander.

5.6 THE INVESTIGATION TEAM

5.6.1 *Roles and Responsibilities*

FUNCTION

The list below outlines the functions of the Investigation Team:

- the team is under the overall command of the SIO,
- responsible for appointing the Liaison Officer,
- the investigation of the offence, including file preparation,
- works closely with Green Command to ensure that the safety of the Hostage/Courier is not compromised.

SIO BRIEFING RESPONSIBILITY

It is the responsibility of the SIO to ensure that both the Investigative and Operational Teams are fully briefed.

INTELLIGENCE CELL

An intelligence cell should be established within the MIR which will covertly research:

- suspects
- intelligence sources and
- any other lines of enquiry which may lead to the identification of the Offender(s).

RED CENTRE LIAISON OFFICER

An Officer should be identified by Green Command as liaison between the MIR, Red Centre and the SIO.

GREEN ROOM LIAISON OFFICER

In order to protect the integrity of the investigation it is recommended that a Liaison Officer, normally a Detective Inspector, be appointed from the Investigation Team to act as liaison between:

- Green Command
- MIR
- SIO

This officer must be different to Red Centre Liaison Officer.

LIAISON OFFICER FUNCTION

The liaison officer must ensure that:

- Copies of actions raised in Green Command are immediately passed to the MIR.
- Any matter which may affect Blue Command (Surveillance) is brought to the attention of Green Commander.

ARREST/SEARCH TEAMS

Consideration will have to be given to the adequate provision of arrest and search teams.

FIREARMS TACTICAL ADVISOR

The deployment of specialist Firearms support must be properly considered in the event of a firearms threat.

The SIO should ensure that:

- a Force Firearms Tactical Advisor, where necessary, forms part of his/her management team and
- Firearms incident commanders are identified and briefed.

CRISIS MANAGEMENT TEAM

It is imperative that SIO's are aware of the function of the Crisis Management Team and the need for close liaison with it.

HOSTAGE NEGOTIATING TEAM

If the kidnap situation develops into a siege, a Hostage Negotiation Team should be deployed.

DEBRIEFING

Structured debriefs are essential at all stages of the operation. At the conclusion of the operation, a full debrief should take place.

MEDICAL ASSISTANCE

When it is expected that a Hostage may be released:

- A doctor or medical team should be on stand-by.
- Consideration should be given as to the need for professional counselling and Victim Support.

FORENSIC EVIDENCE

Specific consideration and care must be taken to gather all possible forensic evidence from the Hostage, Courier and/or Locations identified where the Hostage(s) were held, transported etc.

Forensic evidence is fragile and specialist support should be called to preserve and seize all such material at the earliest opportunity.

5.7 CRISIS/INCIDENT MANAGEMENT TEAM

5.7.1 *Corporate Incident*

FUNCTION OF CRISIS/INCIDENT MANAGEMENT TEAM

In the case of a corporate incident, organisations may form a Crisis Management Team to co-ordinate the company's response to the crisis and assist in their liaison with police.

The CMT also provides a referral point through which all executive decisions can be passed before taking action. This can be a useful negotiating ploy when dealing with Offender(s).

5.7.2 *Crisis/Incident Management Suite*

LOCATION

The availability and suitability of a proper crisis management suite is dependent on the size and resources available within the organisation. Some companies may have built a CMT suite away from their Headquarters or company buildings to prevent activity being observed.

Ideally, a suite should include a room:

- free from distractions,
- spacious enough to accommodate the CMT,
- to accommodate police representatives as determined by the SIO.

ADDITIONAL ACCOMMODATION

The following accommodation should also be available:

- at least one room in which the company should provide additional telephone lines, (two of these will need to be direct numbers not usually used),
- a room for Victim Support and other welfare matters would allow participants to relax without disturbing those dealing with the incident.

5.7.3 *Crisis/Incident Management Team Members*

CORE MEMBERSHIP

The following representatives may make up the Crisis Management Team:

- | | |
|-----------------------------|--|
| • Red Commander | • Distribution and Marketing |
| • Senior Executive | • Production, Scientific, Research and |
| • Personnel/Human Resources | Development |
| • Finance | • Co-opted members |
| • Legal | • Security and its co-ordination |
| • Corporate affairs | • Deputies |
| • Risk Consultant. | |

RED COMMAND FUNCTION WITHIN CMT

Red Commander's function within the CMT is to:

- explain the police perspective,
- give advice where possible to assist the Victim Company in its deliberation process
- act as an intermediary between the SIO and the CMT.

RED COMMANDER FROM LOCAL AREA

In cases where the incident is being dealt with some distance from the CMT, a Red Commander from a local area may attend and act as a liaison.

PERSONNEL/HR FUNCTION

Personnel/Human Resources Departments perform the following function:

- provide a conduit through which enquiries about members of staff and their families can be conducted, especially where an incident may involve an 'inside agent'
- in kidnap cases, when the Hostage returns, long term counselling for the Hostage and family;
- in the event of death or serious injury to Hostage, they will be required to attend to welfare and domestic support issues.

FINANCE FUNCTION

An expert in corporate finance may be present to advise on:

- the ability to pay any ransom demand and
- assess the financial impact of a case entering the public domain.

LEGAL FUNCTION

A corporate Attorney may be available to give advice on liability in all situations. Other areas include an organisation's arrangement with government in the event of a major contamination of water, food or drugs products.

CORPORATE AFFAIRS FUNCTION

Corporate Affairs will deal with the press and media attention in the event of a kidnap or extortion situation.

Red Commanders must ensure that the company press officer and the police press office are aware of each others 'press' strategy and set up guidelines of communication between both groups.

DISTRIBUTION AND MARKETING FUNCTION

In product contamination cases distribution and marketing expertise will be required if a product is to be recalled. It may be necessary to quickly identify products or batches and their current whereabouts.

PRODUCTION, SCIENTIFIC, RESEARCH AND DEVELOPMENT FUNCTION

If the organisation is a food or drug manufacturer, knowing the detailed effect of a threatened contaminant on a product is vital.

Professionals in these fields will be able to advise on colour, odour and textural changes to detect contamination and advise on the penetrability of packaging.

CO-OPTED MEMBERS

The CMT may identify experts or key people who can be co-opted onto the committee depending on the nature of the incident.

SECURITY FUNCTION

In many organisations Head of Security will have key responsibilities for preparing crisis response and contingency plans and should be consulted where appropriate.

DEPUTIES

The CMT members may have nominated deputies to take over in the event of any absences.

6. THE HOSTAGE

6.1 THE HOSTAGE AND THE POLICE

6.1.1 *Related Issues*

THE HOSTAGE

Throughout all decision making, the preservation of the life of the Hostage is the overriding consideration.

PERSONALISE THE HOSTAGE

It is important to personalise the Hostage by referring to him/her by name.

Note: There is considerable evidence to show that Hostages are safer if they can be identified as individuals to the Offender(s).

EXCHANGE OF HOSTAGES

It is not Police policy to allow or advise on exchange of Hostages in a kidnap. In extreme cases where the original Hostage is seriously ill:

- Exchange may be considered solely on the basis of saving life, but
 - i) The new Hostage and the Victim's family must accept an exchange is entirely voluntary and not at the request of the police;
 - ii) Police officers should not be asked to volunteer to be exchanged for Hostages

MORE THAN ONE HOSTAGE

Where Offender(s) have kidnapped more than one Hostage, efforts should be made to obtain the release of one or more of the Hostages as a sign of goodwill on the part of the Offender(s) before any ransom is paid. If the release of further Hostages cannot be secured, the enquiry will proceed as if only one had been involved.

LIBERATED HOSTAGE

Liberation is distinct from escape and must be investigated in some depth to establish:

- for what purpose the Offender(s) have released the Hostage, and
- whether they have imposed further sanctions which may jeopardise life or the investigation.

SECURING EXHIBITS FROM HOSTAGE

If the Hostage manages to escape or is released, they must be considered a 'scene of crime' and appropriate action taken.

HOSTAGE DEBRIEF

In cases where the Hostage has escaped or been liberated, and life is not at risk, a debriefing of the Hostage is vitally important for evidential purposes. This should be carried out as soon as possible.

The hostage should be:

- treated as a key witness and
- debriefed by a member of the Investigation Team.

MONEY PAID - HOSTAGE NOT RETURNED

A situation may occur where ransom has been paid, the Hostage not released and the Offender(s) not arrested.

In these circumstances, the enquiry may continue covertly until the SIO decides the Hostage may reasonably be presumed to be dead.

The SIO must then consider whether the enquiry should become overt and the media informed to assist the investigation.

APPARENT HOSTAGE COMPLIANCE

Hostages being held under duress sometimes give the impression that they are co-operating with their captors. Care must be taken not to confuse this apparent compliance with complicity in the offence for fear for their own or others safety.

Whatever suspicions Red Command Team or investigators may have, it is still safer to assume that the Hostage is being held against his/her will and probably in great danger, rather than risk the consequences of being proved wrong.

PRESS CONFERENCE

If there is:

- no risk to life, or
- further sanctions on release or escape.

Consideration may be given to an immediate press conference and the enquiry becoming overt. **These decisions rest with the SIO.**

7. THE VICTIM

7.1 THE VICTIM AND THE POLICE

7.1.1 *Initial Contact with Victim*

PRIMARY OBJECTIVE

On initial contact, the Red Commander must immediately reassure the Hostage's family of the primary objective of Police:

- To recover the Hostage unharmed and as quickly as possible.

INITIAL INFORMATION REQUIRED

Red Commander will need to seek the following essential information and provide the following details during the initial contact call with the Victim:

- give and explain the code word or agree one with the Victim for further contact, if one has not already been arranged;
- give an estimated time of arrival (ETA) and details of the Red Team contact number
- explain the covert response and the need for delay;
- confirm Hostage(s) details including the first name(s) if known;
- discuss the insertion plan:
 - i) the Victim may be able to suggest the easiest, swiftest method of making covert entry.
- explore the availability of photographs of both Hostage and Victim and suggest having them ready for exchange during the insertion;
- give advice on how to deal with 'hostile' calls e.g. basic delaying tactics and dialling*69 for the last number called;
- advise on 'no Police involvement' policy;
- control hostile calls, suggest to the Victim they neutralise any other means of communication e.g. fax, cellular phone, e-mail etc and have a realistic excuse should the Offender(s) ask;
- suggest the Victim cancels any appointments they have without giving rise to anxiety or suspicion;
- make a written note of events including exact words used by Offender(s);
- advise the Victim on the need to have a natural sounding excuse for the reason why the phone was engaged should the Offender(s) ask.

MULTIPLE VICTIM SITUATIONS

The Red Command Team may find themselves confronted with multiple Victims (e.g. large family environment). They should select the person within that group who displays the potential to align with Police strategy and can exercise sufficient authority and influence over the other Victims. This person should be used to deal with early contact by the Offender(s).

7.1.2 Victim/Red Centre Team Co-operation

CO-OPERATION WITH VICTIM

It is important that all actions and comments are carefully considered so as not to seriously impair the vital partnership between Victim and police. Police need to remember that:

- Dependant on the circumstances, they could be ejected from the Red Centre at any time by the Victim.
- It is important that the Team respect any religious beliefs or cultural customs the Victim(s) may have
- They must work to secure what co-operation they can from the Victim notwithstanding their behaviour, illegal pursuits or unethical lifestyle the Victim(s) may have.

JOINT APPROACH

The aim of the police should be to encourage the Victim's participation and share ownership of the outcome of the situation. Victims should be:

- encouraged to recognise they are an integral part of the operation to recover the Hostage and
- told of the options open to police and their comments invited.

OBSTRUCTIVE VICTIM(S)

Victims may not be supportive of police, as in criminal vendetta cases. Should the Victim or any other occupant of the Red Centre act unilaterally or should such action be suspected:

- the Red Commander must take action to subvert it.
- the SIO and Controller will need to be informed as soon as possible through the Operations or Green Room.

SUSPECTED CRIMINAL ACTIVITY

In cases where the Victim or any other occupant of the Red Centre are suspected of criminal activity, careful thought is required prior to revealing information which might disclose the extent of police technical and operational capability.

AVOIDING POLICE JARGON

Red Command staff should try to avoid lapsing into police jargon or using terms which the Victim(s) would not understand, e.g. 'SIO' or 'red centre'.

HIGH PROFILE HOSTAGE STRATEGY

In circumstances where:

- a well-known public figure is kidnapped or
- the incident is such as to expose it to public attention.

A complete press embargo may become unrealistic.

The Offender(s) will expect press coverage and may be alerted to the possibility of police involvement by the lack of it. In such cases Victim(s) may be able to deny police involvement stating they are prepared to act unilaterally to secure the safe return of the hostage.

Such tactics will be subject of consultation with the SIO, except in a 'time critical' situation where the Red Commander has to make a quick decision.

7.2 COMMUNICATING WITH THE OFFENDER(S)

7.2.1 *Victim Communicator*

FUNCTION OF VICTIM COMMUNICATOR

In most cases, communication will take place between the Victim and the Offender(s) direct.

If, for some reason:

- the Victim is unable to cope or
- the Offender(s) are prepared to communicate with another person representing the Victim.

This individual will be referred to as the Victim Communicator.

SELECTING A VICTIM COMMUNICATOR

Either the Red Commander or Force Negotiator must assess, nominate and brief the Victim Communicator in accordance with the SIO's negotiation strategy.

CHOICE OF VICTIM COMMUNICATOR

It is seldom possible for police to choose the Victim Communicator. The Offender(s) will often insist on speaking to a named individual.

USING POLICE OFFICER AS VICTIM COMMUNICATOR

There are advantages in using a police officer as a Victim Communicator but there are also very considerable risks involved, especially if that individual attempts to assume a role, which the Offender(s) could quickly, discredit by interrogating the Hostage.

In extortion and product contamination cases, the use of a police officer to communicate on behalf of the Victim is a more realistic option. Only trained Police Negotiators should be used for this function.

Note: The use of Police Negotiators to act on behalf of and represent the Victim is an option, which should not be embarked upon without considerable thought, because it may render the Police Service liable to civil litigation in the event of difficulty.

QUALITIES OF A VICTIM COMMUNICATOR

Should police be required or permitted to select a civilian as a Victim Communicator, the following qualities would be desirable:

- physical fitness
- calmness and maturity
- mental agility and flexibility
- friendly and outgoing personality

- verbal persuasion
- a volunteer
- a good listener
- a retentive memory
- patience.

7.3 INTERPRETORS

7.3.1 *Communicating Through an Interpreter*

USE OF INTERPRETERS

If an interpreter is required, the interpreter where possible should be accredited and will have to understand that once they have entered the Red Centre, they may be required to stay for some considerable time and under difficult conditions.

ROLE OF COMMUNICATOR AND INTERPRETER

Many issues will have to be anticipated prior to any 'hostile incoming' calls. Both the Victim Communicator and the Interpreter will need to be briefed by a member of Red Command Team prior to the event. They will then have to be trusted to comply with the negotiation strategy as it will be difficult for that member of the Red Command Team to intervene whilst communication is in progress.

SUITABILITY

In cases where an interpreter may be required as part of the Red Command Team, extensive enquiries will have to be made to ensure that they are the right person for the role.

DELAYED COMMUNICATION

If communications with the Offender(s) is in a foreign language it will be almost impossible for the Red Commander or Force Negotiator to advise the Victim Communicator in 'real time'.

INTERPRETER AS AN INTELLIGENCE SOURCE

In cases where the Victim(s) is suspected of acting unilaterally, the interpreter could provide the police with a source of intelligence should the Victim(s) be speaking to others in a foreign language.

Confidence in the interpreter is crucial as it may be part of the SIO's strategy not to tell the Victim of this function of the interpreter.

8. THE COURIER

8.1 COURIER RELATED ISSUES

8.1.1 *Courier's Role*

COURIER SELECTION

The use and selection of a Courier is a matter to be decided by the SIO in consultation with the Controller. Great care must be taken to choose the right person.

The Courier may be chosen by the Offender(s) in which case if they are clearly unsuitable, every effort must be made to convince the Offender(s) to choose a replacement.

COURIER FUNCTION

The Courier's function is to deliver a ransom in order to:

- neutralise an immediate threat to life,
- prevent the execution of any life threatening menace,
- minimise a threat in a extortion or product contamination offence.

POLICE OR CIVILIAN

There are potential dangers to the Hostage if police substitute a trained individual for a named person who has been seen and selected by the Offender(s).

In corporate extortions product contamination cases, a police officer may be able to hide behind the anonymity of a large company, but may find it difficult to absorb sufficient information about an organisation to confidently answer any 'test' question posed by an informed offender, probing for police involvement.

COURIER / UNDERCOVER OFFICERS

The introduction of a specially trained Courier may be possible if a sustainable legend can be developed which cannot be damaged inadvertently by a Hostage.

DEPLOYING AN UNDERCOVER OFFICER AS COURIER

A police officer must be convincing in the role of Courier. The use of trained undercover police officers has the following benefits:

- undercover officers have assumed a pseudo-identity about which they are confident, this allows them to concentrate on the immediate work of delivering the ransom;
- undercover officers are aware of a full range of facilities available to convince the Offender(s) of their authenticity;
- undercover officers are trained to converse and interact with criminals and members of the public in their assumed identity. They are comfortable in their role and are taught the importance of psychological change when adopting their other identity;
- special evidential procedures have been prepared with specific instructions on '*agent provocateur*' therefore the officer offers the 'best evidence' opportunity to the SIO;

- Undercover officers regularly work with surveillance and technical equipment and understand the capabilities of the equipment deployed.

8.1.2 Equipping the Courier

SIO/RED COMMANDER RESPONSIBILITY

The responsibility for equipping the Courier rests with the Red Commander who, together with the SIO, will develop a strategy in connection with:

- audio monitoring
- night vision aids
- body tape recorder
- courier vehicle (photographed)
- use of personal items/equipment
- clothing to be worn (photographed)
- use of codeword
- Ransom container (photographed - preferably highly visible)

CONTROLLER RESPONSIBILITY

The Controller must ensure that the description and photographs of the Courier, vehicle and ransom container are properly relayed to the Blue Commander for subsequent identification by Surveillance Operatives.

8.1.3 Advice to Courier

PHOTOGRAPHS OF COURIER/ VEHICLES

Photographs should be taken of the Courier (full length and from different angles), the money container and the Courier vehicle and sufficient copies made available.

COURIER VEHICLE

A full description of the Courier vehicle, including distinguishing features like damage stickers, etc. must be photographed or recorded and given to the surveillance operatives.

DRIVING ADVICE

Even the most experienced Couriers become anxious and this may be reflected in their driving. The Courier must be advised to drive in a normal, reasonable manner, consistent with other road users and in accordance with the speed limits.

SECURITY WITHIN THE VEHICLE

In order to prevent the Courier from being robbed either by the Offender(s) or some opportunist thief, they must be advised to keep the doors of the vehicle locked when driving or parked.

POSITION OF THE RANSOM WITHIN THE VEHICLE

Keeping the ransom money on the rear seat is advised as it allows surveillance operatives to see it more easily.

REMOVING RANSOM FROM VEHICLE

To prevent easy access to the ransom money by the Offender(s) or theft by opportunist criminals, the Courier should be instructed to take the ransom money when leaving the car - unless otherwise instructed by Offender(s).

Where two Couriers are deployed together, one of them should (unless otherwise instructed by Offender(s) or SIO) remain locked in the car with the money.

INTERCEPTION EN ROUTE

If intercepted by Offender(s) en route, the Courier must be advised to act as directed by the Offender(s) unless the SIO's arrest strategy dictates otherwise, for example, arrest immediately contact is made (Primary Objectives). The Courier will alert surveillance teams to the interception by covertly incorporating it into conversation and agreed visual sign.

DETAILS OF INTERCEPTION

Details of an interception should include descriptions of:

- suspects
- vehicles
- index plates etc. and
- where any vehicle is heading.

The Courier must remember that the safe return of the Hostage is paramount.

VISUAL SIGNALS

Because situations differ it is not possible to recommend any one visual courier signal (VCS) which will best suit every situation.

Before embarkation, agree Visual Signals to indicate:

- i) Alert surveillance operatives to the fact that the Courier has been separated from the money or
- ii) That they are in need of immediate help.

However, such VCS's need to be:

- clearly visible to the surveillance, sometimes over great distances,
- able to withstand being seen over a reasonable time duration and
- not give rise to any confusion of their meaning.

RELEASING THE RANSOM

If instructed to deposit or hand over the ransom, a Courier must report this fact to the surveillance team by the open channel transmitter, giving:

- landmarks and
- any identifying features which may assist.

This is particularly important if the Courier is required to operate in a rural environment.

RETRIEVING NOTES

Notes, letters and tapes left by Offender(s) are of evidential value to police:

- the Courier must be given advice on how to retrieve and preserve evidence in a covert way,
- some demand notes may contain an instruction for the Courier to dispose of or destroy them,
- conversely, some Offender(s) have instructed Couriers to collect the instructions and deposit them with the ransom.

The SIO will need to clarify his/her policy concerning this issue and the possibility of at least some being retrieved.

8.1.4 Avoiding Potential Problems

AREAS TO AVOID

Any planned route should make it easy for technical or visual contact to be maintained. The Red Commander will provide specific advice on areas to be avoided wherever practicable.

AVOID POLICE ETC.

The Courier must be told not to expect to see police although they will be present. Looking for surveillance operatives may alert Offender(s) practising counter-surveillance to the possibility of police involvement.

Couriers should also avoid asking questions or directions of police officers or similar individuals. Offender(s) watching may misconstrue these actions as contact being made with police. If approached by police or officials, to move a vehicle for example, the Courier must act naturally and conform.

SEARCH FOR MESSAGES

Messages left in telephone kiosks or similar places may become detached or may be picked up by members of the public. It is important that Couriers conduct a thorough search for messages on the floor etc. even if this involves undesirable tasks like looking in waste bins.

CONTINGENCY PLANS

The Courier must be told what they are expected to do if:

- the money is left at a prescribed location,
- it is handed over to the Offender(s),
- he/she has failed to reach the specific location in time,
- he/she has reached the specific location but no contact has been made.

These instructions will normally have been agreed by the SIO prior to the Courier commencing their journey.

COUNTER-SURVEILLANCE

Offender(s) may ask Couriers to visit certain locations with no intention of making contact, merely to see if the Victim is prepared to comply with their demand, to conduct counter surveillance to establish any police involvement or to note the Courier's description.

8.1.5 Debriefing the Courier

On return to police premises the following should be considered:

- switch off any technical equipment;
- take possession of any exhibits;
- note, if need be disseminate any 'hot intelligence' obtained;
- reassure the Courier and deal with any stress or welfare issues
- give feedback:
 - i) emphasise the good points,
 - ii) be prepared to mention any negative matters especially if the Courier is likely to be required again.
- deal with other evidential aspects including arrangements as to when a statement is to be made,
- obtain contact details for the Courier.

'HOT' DEBRIEF

Where possible the person conducting the 'Hot' debrief should also be party to the evidential debrief. Consideration should be given to audio/video/record each debrief session, particularly if the Courier is considered to be a key witness.

EVIDENTIAL DE-BRIEF

The emotional stress and trauma experienced by the Courier must be recognised by the SIO. He/she must ensure selection of appropriate personnel from the Investigative Team and a suitable location to undertake the full evidential debrief.

9. NEGOTIATION

9.1 NEGOTIATION TACTICS AND TECHNIQUES

9.1.1 Policy in Negotiations

POLICY

The policy upon which the negotiation strategy is based will be a matter for the SIO to decide. The Red Commander assisted by the Force Negotiator must make every effort to ensure that the Victim(s) and/or Victim Communicator operate within the framework and spirit of that recommended negotiation strategy.

TACTICS

Once a negotiation strategy has been decided by the SIO then the Red Commander and/or Force Negotiator should be permitted to select the best tactics and ploys to implement that strategy.

STRATEGIES

There are three main negotiation strategies referred to as:

- ‘delay to allow other options’
- ‘direct exchange’
- ‘release after ransom payment’.

‘DELAY TO ALLOW OTHER OPTIONS’

Subject to the discretion of the SIO, the negotiation strategy could be to employ the tactic of delay and keep communicating. This would be applicable in cases where:

- Offender(s) demands are unachievable
- cases of criminal vendetta where the Victim is unable to supply the ransom
- ransom delivery may involve an international dimension
- paying the ransom would involve the commission of an offence
- when unable to reasonably meet demands made
- time is needed to gather intelligence.

Such cases often involve alternative investigative options to that of ‘ransom delivery by Courier’. The Red Command Team may be tasked with ‘buying time’ to keep up the dialogue with the offenders in an effort to illicit more intelligence which may divulge the whereabouts of the Hostage.

‘DIRECT EXCHANGE’

Securing the release of the Hostage in a direct exchange for ransom is more likely to allow police to orchestrate an arrest and/or Hostage release. Although it is rarely agreed, Victims should still be advised to ask the Offender(s) to consider it. There is always a possibility that it might be conceded to and such a request sounds more natural, consistent with police non-involvement.

‘RELEASE AFTER CASH PAYMENT’

The Offender(s) will normally ask for a specific monetary amount or some other commodity. Once an agreement about the value of the ransom has been reached, then arrangements can be made to facilitate payment in exchange for the Hostage. Every attempt should be made to ensure that it is a cash delivery in Jamaican dollars somewhere in Jamaica.

9.1.2 Negotiation Objectives

COMMON FACTORS

No absolute instructions can be given to determine a course which negotiations should follow but in most instances there are some common factors:

- The Victim(s) must convey to the Offender(s) their willingness to negotiate and ultimate desire to pay.
- Evidence must be sought of the Hostage’s well being. Actual proof of life should be secured if possible.
- Attempts to extend deadlines should be made by the Victim Communicators. They must not make promises to Offender(s) they cannot keep.
- Police involvement should be denied unless there are good grounds for admitting this i.e. police attended home address re missing person enquiry.
- Victim Communicators should not suggest demands which had not occurred to the Offender(s).
- If several demands are made, the more attainable should be discussed first.
- The Victim Communicator should not over-talk the demand caller. Vital information may be lost or obscured.

BRIEFING NOTES

The Red Commander or the Force Negotiator will prepare a briefing note containing bold prompting phrases to be displayed for the Victim Communicator. The briefing note is a reminder for the Victim Communicator and will assist them to re-focus on vital areas of negotiation. Such material should be retained in connection with file preparation.

OFFICIAL PHRASES

When briefing a Victim Communicator, care must be taken to avoid the use of official phrases or ‘police speak’ which may be adopted by the Victim Communicator and may alert the Offender(s) to police involvement.

EXPECTATION

Victim Communicators sometimes feel despondent because they do not achieve all that they have been briefed to do. Expectations should not be unrealistic. The Victim Communicator must be informed that the Offender(s) may be very reluctant to remain in telephone contact too long and each stage of the negotiations may take some time.

PREPARATION FOR CONTACT

The following preparation should be made for initial contact with the Offender(s):

- the Victim Communicator should be fully briefed and sitting close to the telephone when contact is expected from the Offender(s);
- the telephone should be allowed to ring two or three times to allow the Victim's Communicator to focus, but not so long as to risk the caller abandoning the call or making adverse comment when it is answered;
- clear briefing sheets should be in direct line of sight and the Victim's Communicator asked to keep their head up and look towards the briefing officer.

INITIAL CONTACT

On initial contact, the Victim Communicator should:

- secure the interest of the Offender(s);
- let them know they want to talk but avoid of self-imposed demands or deadlines.

Sometimes the Offender(s) will telephone Victim(s) and make brief threats, statements or demands. Their purpose is to dominate and instil a feeling of helplessness.

MAKING PROMISES

Promises which cannot be kept should not be made to the Offender(s). Demands which require action by a third party are difficult to achieve and should be met with a frank admission of the potential problem.

PROOF OF LIFE

- The Hostage should be personalised by referring to them by name.
- Proof of life should be sought regularly with requests to speak to the Hostage.
- Alternatively, the Offender(s) may be asked to provide a photograph or video of the Hostage holding a recent newspaper or a cassette tape of their voice.
- A photograph or video is preferable as it may also provide a clue to the place of imprisonment.

MAINTAINING NEGOTIATIONS

The request for proof of life should never be pursued at the expense of destroying a negotiating link. The Offender(s) may be unable or reluctant to provide the evidence and if this is the case, the negotiations must continue in the hope that they may lead to the safe return of the Hostage.

TIME TO DETECT WHEREABOUTS OF HOSTAGE

It is the police objective to discover the whereabouts of the Hostage whilst negotiations are in progress and delays assist towards this end. Attempts to slow down the negotiations are the most difficult of police policies to come to terms with.

REALISTIC DELAYS

Above all, attempts to delay must be realistic. They should not be sprung on the Offender(s) as they may be seen as provocative and lead to violence. Sometimes Offender(s) do not realise the difficulty of obtaining large sums of money and they should be informed of this. Unsolicited information about financial terms should not be given. If a sum is inordinate, delay must be obtained to raise it but beware of self-imposed demands or deadlines.

EXPLAINING POLICE INVOLVEMENT

Where a kidnap has taken place in a covert manner the Offender(s) will often threaten harm or death to a Hostage if they become aware of police involvement, therefore:

- Police must only be mentioned if the Offender(s) do so. They may adopt the ploy of saying they positively know of police involvement. In order to prepare for such a statement, the Victim/Victim Communicator must be warned of this and ready to deny it emphatically.

The Victim Communicator must also be ready to explain any police action which has already taken place in some overt way. For example, they might say they reported to police that (Hostage's first name) was missing at the beginning but have since retracted the allegation. This is a vital point and needs preparation.

THE NEXT CALL

If possible, the time of the next contact should be sought without alerting the Offender(s). This may necessitate explaining the need to be readily available to take the call. Offender(s) should be asked to repeat the message for clarification.

DISGUISED VOICES

Offender(s) often use pre-recorded messages to make their demand thereby preventing any negotiation. Some Offender(s) use electronic devices to disguise their voice. A danger of Offender(s) who use disguised voices is the fact that they can genuinely not be understood. This can have life threatening implications if the Victim(s) are as a consequence unable to carry out the prescribed instructions.

CURRENCY

Offender(s) may stipulate exactly what currency they require and in what denominations. This may be impractical and unrealistic. Any decision not to comply with the Offender(s) instructions precisely is a matter for the SIO to direct.

DENOMINATIONS

If possible, the highest denomination of banknotes should be used as they would be more difficult to spend and easier to trace if the ransom is lost.

Conversely, if the amount requested is low it is better to use low denomination notes, as it is more difficult to secrete technical devices in small packages and will be more easily seen by surveillance.

Officers must be aware of the inherent dangers of using any form of technical device which may be discovered by the Offender(s).

BULK OF MONEY

Offender(s) rarely consider the physical bulk of large amounts of money. A table that will assist in estimating bulk is below and contained within the Red Command Aid Memoir Booklet. It is essential that the Victim Communicator does not discuss details with the Offender(s) at an early state, without apparently having had an opportunity to assess the detail(s) for themselves, by seemingly consulting a bank or other credible sounding source. Method of payment and movement of the ransom will have to be discussed.

The table below indicates the weight of notes in relation to values that may be demanded. An easy comparison can be made to a 2.2lb/1kilo bag of sugar.

Note	Value	New Notes	Used Notes
1000	J\$1 Million	0.975 kilos	0.985 kilos
500	J\$1 Million	1.95 kilos	1.97 kilos
100	J\$1 Million	9.75 kilos	9.85 kilos
50	J\$1 Million	19.5 kilos	19.7 kilos
1000	J\$100,000	0.0975 kilos	0.0985 kilos
500	J\$100,000	0.195 kilos	0.197 kilos
100	J\$100,000	0.975 kilos	0.985 kilos
50	J\$100,000	1.95 kilos	1.97 kilos
1000	J\$1000	0.000975 kilos	0.000985 kilos
500	J\$500	0.000975 kilos	0.000985 kilos
100	J\$100	0.000975 kilos	0.000985 kilos
50	J\$50	0.000975 kilos	0.000985 kilos

The table below illustrates the weight of an **average weight suitcase** containing various denominations of banknotes:

Value	Note	Weight
J\$150,000	J\$50	2.875 kilogram
J\$250,000	J\$100	2.5463 kilogram
J\$500,000	J\$500	0.972 kilogram
J\$1,000,000	J\$1000	0.975 kilogram

9.2 DOCUMENTARY CONTACT AND RESPONSE

CONTACT BY LETTER

Demands can be made by an anonymous letter, directing the Victim to take a certain course of action. Confirmation that the Victim is prepared to comply with the demand is often sought by directing them to place a given text in the advertising columns of a local or national newspaper, generally against a deadline.

ADVERTISEMENTS IN NEWSPAPERS

If it is decided to encourage telephone negotiations, then the placing of an advertisement will provide the means by which the telephone number can be conveyed to the Offender(s). Investigators are advised to arrange such facilities through the NIB.

TIME CONSTRAINTS

Particular care must be taken to place the advertisement with the newspaper in good time, to comply with the instructions.

PLACING BY COVERT MEANS

Undercover Officers should be employed to place advertisements covertly.

INFORMATION REQUIRED

When placing an advertisement the person concerned must be in a position to supply the following information:

- the details of a telephone number, which the newspaper can ring the caller back on (the identity of the subscriber is therefore crucial);
- the details of a business, home or accommodation addresses. These are often known to newspapers, which keep databases. The address given will therefore need to be able to withstand such scrutiny;
- the ability to pay for the advertisement using a current credit card.

POTENTIAL HAZARDS

Experience has identified a number of other difficulties associated with placing advertisements in newspapers:

- newspapers are anxious to avoid becoming a forum through which illegal business is transacted;
- investigative journalists are likely to benefit if police declare their interests in placing the advertisement at the outset and
- investigative journalists will also benefit if police, or the Victim, are identified attempting to place the advertisement covertly.

10. RANSOM AND PAYMENTS

10.1 RANSOM OR OTHER FORMS OF PAYMENT

10.1.1 *Payment*

PAYING RANSOM

The Red Commander will discuss with the Victim(s) their ability and willingness to pay the ransom or other negotiable item demanded. The final decision to pay rests with the Victim(s).

USE OF PUBLIC FUNDS

Police must not infer that public funds are available to finance ransom payment even if the Victim(s) obviously have no ability to pay. In some cases it may be against government policy to make any substantial concessions by paying a ransom. Police will advise on the desirability or otherwise of payment and the method chosen.

USE OF FORGED MONEY

Forged currency and ‘flash money’ (i.e. some real notes bundled with suitably cut paper) should **never** be used in kidnap cases as it may jeopardise the safety of the Hostage. In some extortion cases, ‘flash money’ may provide an opportunity to draw out an Offender without risking huge sums of money. Each case requires careful consideration and discussion with the Victim(s).

PRE-EVIDENCED CASH

When required, the obtaining of such money may be achieved and early contact must be made with the DCP Crime Portfolio.

EXCEPTIONAL CASES

In very exceptional cases there may be unique circumstances which provide police with a strong moral or legal obligation to finance a ransom or other form of payment. Although such decisions would have to be made by the SIO in consultation with the Commissioner through DCP Crime Portfolio, the Red Commander may be required to provide information needed to assist in those deliberations.

ACCESS TO MONEY

The SIO will need to know the Victim(s) accessibility to funds and realistic expectations’ as to how long it would take them to make it available. This will assist police in using a realistic delaying tactic and in preventing suspicion of police involvement by the Victim(s) surprisingly ready access to large amounts of cash.

VICTIM(S) WITH INSURANCE

Some Victim(s) may be insured against the risk of kidnap, extortion or product contamination. Red Commanders or police officers investigating the Victim(s) ability to pay need to be aware that it may be a condition of the insurance policy that they do not disclose the fact that they hold such cover exists. Such cover could become nullified in the event of public disclosure.

Any reservations on the part of the Victim(s) to answer such questions should not therefore be automatically viewed with suspicion.

OTHER FORMS OF PAYMENT

It is possible for police to operate with foreign currency and other forms of payment such as banker's drafts or electronic transfer of money, but advice will need to be sought as to the best way of doing so. In the current climate of cyber extortion the possibilities are almost endless. There may even be cases where the negotiable item demanded is itself an illegal substance or proceeds of crime. Such cases will be referred back to the SIO for directions. SIO's need to remember the primary concern is the safe return of the Hostage.

INTERIM PAYMENTS

Offers of interim payments together with items of clean clothing may be considered. This may provide police with an additional opportunity to observe a collection by the Offender(s). This tactic may be useful where Victim(s) do not have immediate access to the sum demanded.

11. OPERATIONAL PROCEDURES

11.1 MEDIA

11.1.1 Voluntary Agreement

MEDIA BLACKOUT

The SIO should consider the need to seek a voluntary media blackout agreement and contingency plans should be in place with the Director of Communications. To seek any such agreement requires the personal authority of the Commissioner (or in his/her absence, the designated deputy).

INITIAL REQUEST

Telephone contact to request a blackout will be made with Editors by the Director of Communications or a Senior Operational Officer. This telephone request should be confirmed in writing by a letter signed by the Commissioner. This letter should be faxed to Editors.

MEDIA AGREEMENT

An agreement should be sought in cases of kidnapping where human life is at stake with all the news agencies in Jamaica. Once an agreement is in place all news outlets within Jamaica would be urged to observe it, however, it would be a voluntary agreement. Although there are no powers to enforce the agreement, most Editors should recognise the circumstances in which it would be wrong to disregard it.

Note: SIO's should be aware that the international press e.g. CNN would not be covered by such an agreement. Other countries may have similar arrangements and close liaison with the police agency responsible for kidnaps in that country is essential.

INITIAL MEDIA BRIEFING

Following initial contact to request a blackout, Editors should be informed by phone or fax of the time and venue of the first media briefing. This briefing should take place within 24 hours and be conducted by the Commissioner or one of his/her deputies:

- spell out the request and the reasons for it;
- issue the letters if this has not been done;
- explain the coverage and likely duration of the blackout;
- give as much information as possible;
- offer regular briefings (at least every 24 hours);
- provide a 24 hour contact number to offer specific guidance to individual outlets on request;
- offer and deliver if practicable, the longest possible period between the lifting of the blackout and the charging of suspects;
- consider whether television crews should be requested to make 'pool' arrangements.

Never use the agreement to:

- spread misinformation through the media;
- mislead the media and

- cover up police error.

CONTINUED MEDIA BRIEFINGS

Following the first briefing, the police will hold further briefings not less than every 24 hours to update the media. Media briefings will be 'on the record' but embargoed, for publication/broadcast only after the blackout is lifted. On the same basis, TV and radio recording will be permitted. In the event of large numbers of crews seeking to cover such an event, the news agencies should agree to operate a 'pool' arrangement, including service to overseas TV outlets.

NEWS GATHERING RESTRICTIONS

During a news blackout, the police will consult the media should they see a need for Editors to restrict news gathering or photographic activities. Audio or visual material gathered by the police while such restrictions are being observed by the media may be made available to the media for use at the conclusion of the incident, subject to operational considerations.

ON HOSTAGE RELEASE

When the life of the Hostage is no longer at risk, the police will notify the media as soon as possible. Police will then call an immediate non-embargoed 'on record' press conference to ensure the media have every opportunity to publish/broadcast before charges are laid. If the Hostage is reluctant to attend a press conference, efforts will be made to see if a 'pool' facility for press, TV and radio could be arranged. Where that is not possible, every effort will be made to make at least the Hostage(s) photo available to the media. (Authority from the Hostage should be sought).

LIAISING WITH THE FAMILY

The SIO should be aware that once the Hostage is no longer at risk, media interest is likely to include the extended family and friends of the Hostage. There is therefore a need to allow time for family/friends to be informed of the incident before it enters the public domain.

END OF NEWS BLACKOUT

When the blackout ends, the media may refer in their reports to the fact that the news was withheld.

11.2 COMMUNICATIONS

11.2.1 Red Centre Protocols

ESSENTIAL INFORMATION

During the initial police contact with the Red Centre, the Victim needs to be asked the following questions:

- which Communications Service Provider (CSP) network they are connected to and the telephone number the Offender(s) are phoning in on (if the latter is revealed and not protected);
- establish whether the Victim has any other telephones, mobiles, business lines, etc. which the Hostage knows and could also use to call the Victim;
- does the Hostage have his or her own cellular phone with them, and if so, the network and number;
- are there other friends or family which the Offender(s) may also be contacting to try and simultaneously extort money.

These questions need to be asked so that all possibilities can be explored. The SIO needs to consider the Offender(s) may be trying to extort money from more than one Victim and there may therefore, be the need for additional Red Centres.

NEGOTIATION CELL

The Red Commander needs to establish whether and how the Offender(s) have made contact. They must then identify a room where negotiations may be quietly and securely conducted.

COMMUNICATIONS CENTRE

A separate room should be identified as a Communications Centre to accommodate the remainder of the Red Command Team. The rooms should be located so the team can function covertly, whilst the rest of the household acts as normally as possible. Visitors to the premises should not be allowed to become aware of the police presence.

RED COMMAND LIAISON

After a suitable room has been established, an officer within Green Command will provide a point of contact between the Red Command Team and the Operations Room.

‘HOT INTELLIGENCE’

Once established, the Red Command Liaison (RCL) will be responsible for ensuring that all ‘hot intelligence’ coming out of the Red Centre is passed without delay to the SIO, Controller or Green Commander. Conversely, the RCL will be responsible for furnishing the Red Command Team with all urgent information.

DEMAND/RED TELEPHONE

Having established that contact has been made by the Offender(s) and by what means, the Red Command Team must prepare for further hostile contact. The red telephone is the telephone on which hostile contact is received from the Offender(s).

If the source is a conventional or cell telephone it will thereafter be referred to as the 'red telephone'.

Note: Police must only use this phone in grave emergency when all other lines of communication have failed. The incoming caller must always use the codeword. Failure to use the codeword will result in the Victim denying police involvement and a wasted call; it will also risk having a detrimental effect on the Victim's faith in police efficiency.

AUTHORITY TO INTERCEPT

Facilities exist whereby an emergency application can be made to Special Branch to intercept the 'red telephone', provided there is specific intelligence to indicate there is a threat to life or some similar time imperative need whereby interception would be a last resort option.

VICTIM AUTHORITY

It is imperative that the telephone subscriber at the Victim's address gives written authority at an early stage for their telephone to be monitored. This written authority must be obtained by the Red Commander and taken by hand or faxed to the SIO as soon as reasonably practicable for onward transmission to Special Branch.

'SILENT RUNNING' ROUTINE

Red Centre occupants need to be aware that suspicious background noises may alert the Offender(s) as to the presence of police. Radios, cell phones and beeping watches need to be turned off or put on 'silent' mode. Care must be taken to ensure that the noise of pens and shuffling paper, voices in the background etc. cannot be heard by the 'hostile' caller. This procedure is known as 'silent running'.

It is vital that the Victim or person controlling the incoming calls makes sure that the communications link with the hostile callers has been completely broken before anyone in the Centre speaks to each other. The Victim may need to be briefed as to methods of supplying a legitimate excuse in the event of any sudden unforeseen background noise.

CELL TELEPHONES

It may be necessary to use a cell telephone for communication with the Operation or Green Room. It must be remembered that some cell telephones are not secure and are susceptible to radio frequency scanning. (In case of doubt technical assistance should be sought). Sufficient credit for making calls must be provided where this is necessary.

HOSTILE CONTACT

Surveillance operatives may observe a Suspect(s) in a telephone kiosk or using a cell phone whilst a hostile call is being sent. It is essential that facilities exist whereby the Red Centre can alert an RCL officer when a hostile call is being received.

FURTHER TELEPHONE LINES

If only one 'hard line' telephone exists in the Red Centre and further lines are required, the assistance of Cable & Wireless or other communications 'service providers' may be needed.

11.3 TELECOMMUNICATIONS INTELLIGENCE & ANALYSIS

11.3.1 *'Special Services'*

ACCESS

In accordance with the protocols in place for accessing communications data, direct access to the range of 'Special Services' provided for kidnaps is restricted to the designated Single Point of Contact (SPOC) within NIB/SB.

SPOC ACCREDITATION

Only those SPOC staff may be permitted direct access to 'Special Services'.

EARLY NOTIFICATION TO SPOC

The SIO and/or Red Commander must ensure that the SPOC is immediately notified of any kidnap so that they can implement the necessary procedures. Staffs are on call 24 hours to rapidly provide access to the range of communications data needed, both telephone and internet, to help identify a geographical locus for the Offender(s) as well as tracing the origin and means of their communications. The SPOC should be tasked by the SIO through the Intelligence Cell and all decisions to access intrusive personal data must be logged.

CONSENSUAL INTERCEPTION

To effectively monitor telephone activity at the Red Centre, the Victim should be asked to agree to Consensual Interception and sign an authority to that effect. The monitoring and collation of call related data would be the responsibility of the SPOC.

11.3.2 *Procedure*

TRACING MEANS OF COMMUNICATION

It is of paramount importance at the start of the operation to trace and identify the means of communication being used by the Hostage whenever there is a need for proof of life. For example, the telephone making the call, transmitting an SMS Text Message, or connected to the Internet, as well as for all other telephones used by the Offender(s) to communicate with the Red Centre.

TELEPHONE ACTIVITY

All information concerning relevant telephone activity needs to be passed immediately to the SPOC. Through them, the Communications Service Provider (CSP) will activate the range of 'Special Services'.

INTERNATIONAL DIMENSION

Whenever life-critical operations involve an international dimension, such as tracing communications to or from overseas destinations, immediate advice should be sought via the SPOC at NIB/SB.

INITIAL CONTACT

During the initial police contact with the Red Centre, the Victim needs to be asked the following questions:

1. Which CSP network they are connected to and the telephone number the Offender(s) are phoning in on from (*69).
2. Establish whether the Victim has any other telephone lines, mobiles, business lines etc. which the Hostage knows and could also use to call the Victim.
3. Does the Victim have his or her own cellular phone with them and if so, the network and number?
4. Are there other friends or family which the Offender(s) may also be contacting to try and simultaneously extort money?

USE OF EXISTING SERVICES

Whilst 'Special Services' are being set up, police deployed in Red Centre should take advantage of the standard range of services available to telephone users such as *69 to find the last received number.

11.3.3 Analysis

COLLATE DATA

Data should be obtained for all relevant telephones: the Offender(s), Victim's and Hostage's and then cross-referenced with information held on local intelligence databases and the SPOC Database.

IDENTIFYING PREVIOUS CONTACT

Previous unguarded contact, prior to the kidnap, between the Offender(s) and people at the address subsequently used for the stronghold regularly leads to the rapid identification of those premises. It also provides valuable information about associates who may lead surveillance to the stronghold.

11.4 TECHNICAL SUPPORT

11.4.1 *Senior TSU Officer*

FUNCTION

The senior technical support (TSU) Officer or deputy must be available to the Controller and SIO at all times during the investigation, for consultation and advice on matters concerning technical support. They will also liaise closely with the Blue Commander when providing technical support to surveillance.

TECHNOLOGICAL ADVANCE

It is vital that the SIO has an up-to-date and continuing appraisal from an experienced TSU officer as to what technical options are available.

TSU OFFICER RESPONSIBILITIES

The TSU officer will be responsible for:

- the ability for the SIO to communicate with the Red Commander without using the domestic or business telephone on which the Offender(s) demands may be relayed;
- an assurance that telephone conversations between the Offender(s) and the Victim or Negotiator are being tape recorded for working and evidential purposes;
- advising the SIO regarding specialist equipment;
- the ability, if required, to install technical equipment at Red Centre to protect the interests of Red Commander and to confirm or negate suspicion that the Victim's family or other representatives are involved in a conspiracy;
- the ability to track a Courier wherever sent;
- the ability to locate both the Courier and any ransom if they become separated; to receive an indication by remote signal that a ransom container has been opened and to maintain contact with the ransom if removed from the container;
- to provide staff and equipment to scan radio frequencies in the vicinity of Red Centre(s) or anticipated points of contact with the Courier.

ADVICE

The Senior TSU Officer should make no assumptions as to the level of technical knowledge of the SIO. They must be prepared to offer early, practical and tactical advice about the type and use of equipment available. They must include potential limitations and risks associated or anticipated with its use in particular circumstances and the potential for disclosure of sensitive techniques.

11.5 EXHIBITS

11.5.1 Preserving Evidence

SCENE PRESERVATION

If a Hostage has been seized from the Red Centre, the Red Commander must consider this as a crime scene and notify the SIO of the viability of having it fully examined for forensic, bearing in mind the need for covert entry to the premises by additional personnel. Where it is considered unsafe for additional personnel to visit the premises, the Red Commander must take all reasonable steps to preserve the scene until a thorough forensic examination can be safely conducted.

EVIDENCE GATHERING

The SIO must remember that the gathering of evidence is secondary to the safe and speedy return of the Hostage.

SECURING EXHIBITS FROM HOSTAGE

If the Hostage manages to escape or is released they must be considered a 'scene of crime' and appropriate action taken.

DOCUMENTARY, AUDIO AND ELECTRONIC THREATS OR DEMANDS

Any existing documentary, audio or electronic evidence from the Offender(s) to the Victim(s) must be preserved, exhibited and covertly conveyed to an appropriate location as soon as possible. E-mail messages may have to be downloaded and printed off. In cases of doubt, Red Command should seek expert advice.

SEARCHING THE HOSTAGE'S ROOM

There may be a need to search the Hostage's room for other evidence (for example, letters etc.) which may help to provide intelligence. The Red Command Team will have to balance the need for such a search against compromising the location of the Red Centre.

11.6 ARREST PROCEDURE

11.6.1 Arrest Policy

DECISION TO ARREST

The decision to arrest falls to the SIO. In line with the primary objectives, an Offender(s) should not be arrested until:

- the release of the Hostage has to be confirmed;
- it is confirmed or strongly suspected that the Hostage is no longer alive;
- the rescue of the Hostage can be effected quickly and safely;
- failure to arrest would place the Hostage in greater danger;
- It is necessary to protect the life of the Courier/Victim.

EXTORTION

The SIO should consider arrest when:

- there is sufficient evidence to substantiate a charge, and
- the threat has been neutralised, or
- the threat will be removed once the arrest has taken place.

Any decision to delay arrest in order to gather evidence must be reasoned and recorded with due regard to public safety.